

of any breach of trust would be an *information* by the Attorney-General at the instance of all or some of the persons interested in the matter. If there was a particular trust in favor of particular persons and they were too numerous for all to be made parties, one or two might then sue, on behalf of themselves and the other *cestuis que trust*, for the performance of the trust (*d*)."

5 & 6 W. 4, c. 76. — Since the Municipal Corporations Act every municipal corporation named in the schedules to the Act (*e*), has *become a trustee*, and has now no longer the power to aliene and dispose of its property, except with the sanction of the lords of the Treasury, but is bound to apply it to certain public purposes pointed out by the Act; and if there be any misapplication, there lies a remedy in Equity by information (*f*).

[*32] * **Licence of the Crown.** — Although the Court has ample jurisdiction to oblige a corporation to observe good faith, and the property already vested in a corporate body will be administered upon the trust attached to it, yet no real estate can be conveyed to a corporation upon any trust without the *licence* of the Crown.

But there is no objection to an assignment or bequest of pure *personal* estate to a corporation upon trust.

3. Bank of England. — The Bank of England cannot directly or indirectly be made a trustee of stock. The corporation manages the accounts of the public funds, and is charged with the care of paying the dividends, but refuses, and cannot be compelled by law, to notice any rights but those of the legal proprietors in whose name the stock is standing.

Bank of England cannot be a trustee. — The Company will not enter notice of instruments *inter vivos* upon their books; and though they were formerly obliged by certain Acts of

(*d*) *Evan v. The Corporation of Avon*, 29 Beav. 149.

(*e*) 5 & 6 W. 4 c. 76. Corporations not named in the schedules to the Act may still dispose of their estates. *Evan v. The Corporation of Avon*, *ubi supra*.

(*f*) *Attorney-General v. Aspinwall*, 1 Keen, 513; 2 M. & C. 613; At-

torney-General *v. Borough of Poole*, 4 M. & C. 17; *Parr v. Attorney-General*, 8 Cl. & Fin. 409; *Attorney-General v. Corporation of Lichfield*, 11 Beav. 120; *Attorney-General v. Mayor of Waterford*, 9 I. R. Eq. 522; [*Attorney-General v. Mayor of Brecon*, 10 Ch. D. 204; *Attorney-General v. Mayor of Stafford*, W. N. 1878, p. 74].